

SENATE No. 1120

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a bill of rights for people experiencing homelessness.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>4/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>9/9/2025</i>

SENATE No. 1120

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 1120) of Adam Gomez and Rebecca L. Rausch for legislation to establish a bill of rights for people experiencing homelessness. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1112 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a bill of rights for people experiencing homelessness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 17A of chapter 85 of the General Laws is hereby repealed.

2 SECTION 2. Chapter 214 of the General Laws is hereby amended by inserting after
3 section 1C the following section:-

4 Section 1D. (a) A person experiencing homelessness shall have the right to be free from
5 discrimination on the basis of housing status.

6 (b) As used in this chapter, the following words shall, unless the context clearly requires
7 otherwise, have the following meanings:

8 “Housing status” means a person’s current ability to access a fixed, regular nighttime
9 residence as defined in section 16W of chapter 6A of the general laws.

“Park” shall include a city or town common dedicated to the use of the public, or appropriated to such use without interruption for a period of 20 years as defined in section 1 of chapter 45 of the general laws.

“Persons experiencing homelessness” means persons who lack, or are perceived to lack, a fixed, regular nighttime residence as defined in section 16W of chapter 6A of the general laws. Persons experiencing homelessness includes, but are not limited to, persons who: (1) share the housing of other persons due to loss of housing, economic hardship or a similar reason; (2) live in motels, hotels, trailer parks or campgrounds due to the lack of fixed, regular, and adequate nighttime residence; (3) live in emergency or transitional shelters; (4) are abandoned in hospitals; (5) are awaiting foster care placement; (6) have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings; (7) live in cars, parks, public spaces, abandoned buildings, bus or train stations or similar settings; (8) are transient and otherwise experiencing homelessness as described in this subsection; or (9) are in situations as described in section 11302(a) of title 42 of the United States Code.

“Public space” means any real property that is owned, in whole or in part, by the Commonwealth or any municipality, or upon which there is an easement for public use, and is held open to the public. Public space includes but is not limited to plazas, courtyards, parking lots, sidewalks, public transportation facilities and services, public buildings, and parks. Public space does not include a private business establishment.

“Recreational vehicle” has the meaning given that term in section 20 of chapter 90B of the general laws.

“Rest” means the state of sleeping or not moving or the state of holding certain postures that include but are not limited to sitting, standing, leaning, kneeling, squatting or lying on the ground or other surface.

“Town” shall not include city as defined in section 1 of chapter 45 of the general laws.

(c) Persons experiencing homelessness shall have the right to:

(i) use public spaces in the same manner as any other person without discrimination based on their housing status;

(ii) equal treatment by all state and municipal agencies, without discrimination on the basis of housing status;

(iii) a reasonable expectation of privacy in personal property in public spaces;

(iv) interact with public officials, employees, and officers without harassment on the basis of their housing status;

(v) rest in public spaces and seek protection from adverse weather or an imminent public health emergency in a manner that does not obstruct human or vehicle traffic and is without discrimination based on their housing status;

(vi) access routine and emergency medical care free from discrimination on the basis of housing status, including without limitation access to medical care, testing, and vaccination for the 2019 novel coronavirus, known as COVID-19;

(vii) eat, share, accept, or give food in any public space in which having food is not prohibited;

(viii) vote, register to vote, and receive documentation necessary to prove identity for voting without discrimination on the basis of housing status;

(ix) pray, meditate, worship, or practice religion in public spaces without discrimination based on housing status in a manner that does not obstruct human or vehicle traffic;

(x) protection from the disclosure of records provided to homeless shelters and service providers to state, municipal, and private entities, absent valid written authorization to do so; and

(xi) occupy a motor vehicle or a recreational vehicle, provided that the vehicle is legally parked on public property or on private property with the express permission of the private property owner.

(d) The provisions of this section pertaining to public spaces shall not apply if the public space is closed to the general public or requires a fee for entry. When practicable, public officials, employees, or officers shall clearly designate and provide an appropriate alternative place for persons experiencing homelessness to rest without time limitations in the near vicinity.

(e) It shall be an affirmative defense to a civil claim or criminal charge related to use of public spaces that a person experiencing homelessness was exercising any right set forth in this section.

(f) The superior court shall have jurisdiction in equity to enforce any right set forth in this section and award damages in connection with any violation thereof.

SECTION 3. Section 1 of chapter 51 of the General Laws, as so appearing in the 2020 Official Edition, is hereby amended by inserting after the last sentence the following sentence:-

Lack of a fixed, permanent residence for a person experiencing homelessness shall not prohibit voter registration.

SECTION 4. Section 1 of chapter 151B of the General Laws, as so appearing in the 2020 Official Edition, is hereby amended by adding the following subsection:-

24. The term “housing status” shall be defined as a person’s current ability to access a fixed, regular, or adequate nighttime residence.

SECTION 5. Section 3 of chapter 151B of the General Laws, as so appearing in the 2020 Official Edition, is hereby amended by inserting after the word “information” in line 20 the following words:- housing status.

SECTION 6. Said section 3 of chapter 151B, as so appearing, is hereby further amended by inserting after the word “persons”, in line 56, the following words:- persons who have experienced homelessness.

SECTION 7. Said section 3 of chapter 151B, as so appearing, is hereby further amended by inserting after the word “information”, in line 66, the following words:- housing status

SECTION 8. Said section 3 of chapter 151B, as so appearing, is hereby amended by inserting after the word “origin”, in line 87, the following words:- housing status.

SECTION 9. Section 4 of said chapter 151B, as so appearing, is hereby amended by inserting after the word “information”, in lines 5, 189, 204, 211, 223, 232, 266, 293, 311, 361, 369, 379, 479, 490, 495, 502, 824, and 833 in each instance, the following words:- housing status

SECTION 10. Said section 4 of chapter 151B, as so appearing, is hereby further amended by inserting after the word “age” in line 300 the following words:- housing status.

SECTION 11. Said section 4 of chapter 151B, as so appearing, is hereby further amended by inserting after the word “origin”, in lines 634 and 644, and in each instance, the following words:- housing status.

SECTION 12. Said section 4 of chapter 151B, as so appearing, is hereby further amended by adding the following subsection:-

20. It shall be unlawful discrimination for any employer, employment agency, labor organization, or licensing agency to refuse to hire or employ, represent, grant membership to, or license a person on the basis of that person's housing status or having a mailing address being that of a shelter or social service provider, or to terminate or refuse to renew a person's employment, representation, membership, or license on the basis of that person's housing status.

SECTION 13. Sections 63 through 69, inclusive, of chapter 272 of the General Laws are hereby repealed.

SECTION 14. Section 92A of chapter 272 of the General Laws is hereby amended by inserting after the word “nationality”, in line 9, the following words:- housing status.

SECTION 15. Section 98 of said chapter 272, as so appearing, is hereby amended by inserting after the word “origin”, in line 3, the following words:- housing status.

SECTION 16. Section 122 of chapter 5 of the Acts of 1995 is hereby repealed.